



Association of Bay Area Governments



Technical Assistance
for Local Planning

HOUSING

DISCLAIMER: This document is intended solely as a technical overview of the provisions of AB 2011 (2022) and SB 6 (2022). It is not intended to serve as legal advice regarding any jurisdiction's specific policies or any proposed housing development project. Local staff should consult with their city attorney or county counsel when adopting an ordinance to implement the provisions of AB 2011 and/or SB 6 or when determining the applicability of these provisions to any proposed housing development project in their jurisdiction. Because the laws are so new, the legislative intent of major provisions is still being discussed and this memo may change significantly.

Understanding AB 2011 and SB 6

AB 2011 and SB 6 permit residential development on sites currently zoned for commercial or retail uses. Both laws go into effect on July 1, 2023. The specific standards that will apply are complicated to understand. The provisions of both laws are applicable to local jurisdictions without an implementing ordinance, although if a jurisdiction adopts one, it is exempt from CEQA. Because the laws are so new, it is not clear how much use they will see.

Policy Decisions and Recommended Actions

Potential action items related to AB 2011 and SB 6 include:

Council Action Items:

- ☐ **Implementing Ordinance.** Consider adopting an implementing ordinance for one or both laws
- ☐ **Exempt Parcels.** Decide if parcels will be exempted and if exempting, make required written findings and reallocate lost density
- ☐ **Labor Requirements.** Decide if and how to monitor labor requirements including reviewing reports from developers
- ☐ **Relocation Assistance.** Determine how to enforce relocation assistance requirements for commercial tenants and residents

Staff Action Items:

- ☐ **Create development project applications**
- ☐ **Prepare maps of eligible parcels**
- ☐ **Develop procedures to enforce relocation assistance and labor monitoring procedures**
- ☐ **Develop project review processes that meet legally required timelines**
- ☐ **Define "project site" and clarify how "closest parcel" will be determined**

Site Criteria & Development Standards

AB 2011 and SB 6 both allow multi-family residential projects in commercial zones, but the rules are different. There is one set of standards in SB 6 and there are two sets of standards in AB 2011, for mixed Income Housing and 100 percent affordable projects.

SB 6 projects are allowed on sites of 20 acres or less in zones that allow office, retail or parking as a principally permitted use. SB 6 does not define "principally permitted use."

AB 2011 projects are allowed in zones that allow office, retail or parking as a principally permitted use. AB 2011 defines "principally permitted use" as a use that can occupy more than 1/3 of square footage without a conditional use permit. Mixed income housing projects are only allowed on sites of 20 acres or less with at least 50 feet of frontage on public street with a right-of-way between 70 and 100 feet. There is no site size limit or street criteria that must be met for 100percent affordable housing projects.

SB 6 Site Criteria



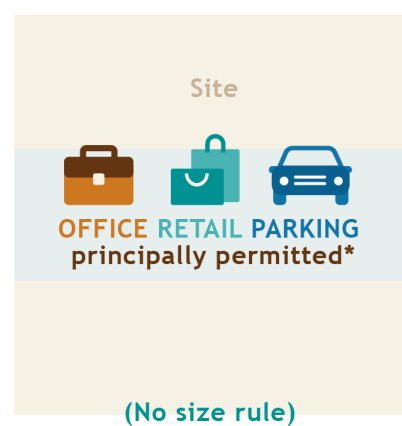
* SB 6 does not define "principally permitted use"

AB 2011 Mixed Income Housing Site Criteria



— At least 50' frontage along a public street with 70'-150' right-of-way —

AB 2011 100% Affordable Housing Site Criteria



* AB 2011 defines "principally permitted use" as a use that can occupy more than 1/3 of sf without a CUP

SB 6 Development Standards

To qualify for SB 6, the project must meet or exceed the default density under housing element law (20 or 30 du/acre). Generally, jurisdictions will apply the zoning standards from the closest zone that allows the housing element default density (20-30 du/acre). More specifically, the project must comply with local zoning, parking, design and other ordinances, local code requirements and procedures applicable to housing from either:

- 1) The existing zoning for the parcel if the zoning allows residential density that exceeds default density, if not
- 2) The standards in the closest zone that allows for housing at the default density.

The project must comply with all other objective standards for the parcel including impact fee and inclusionary housing requirements.

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AB 2011 Development Standards

For AB 2011 100 percent affordable projects, the development must meet objective zoning, subdivision and design review standards for the zone that allows *greater* residential density between the following:

- (1) The existing zoning designation for the parcel if it allows multifamily residential use; or
- (2) The zoning designation for the closest parcel that allows residential use at density that is appropriate to accommodate the default density per housing element law.

Additionally, for 100 percent affordable projects, the density of the project must meet or exceed the default density under housing element law (20 or 30 du/acre).

For AB 2011 mixed income housing projects, the standards are more prescriptive. The minimum density ranges from 30-80 dwelling units per acre depending on site size, width of the adjacent street, proximity to transit and whether the site is in a metropolitan or non-metropolitan jurisdiction. Heights are also complicated to summarize, ranging from the existing permitted height to 65 feet near transit.

AB 2011 prohibits jurisdictions from applying “special” objective development standards to AB 2011 projects. (See Government Code Sections 65912.114(l); 65912.124(l).)

The rules for development standards are complicated. See the Overview Document for more details.

General Project Requirements & Review Timelines

AB 2011 and SB 6 have project requirements that are outlined below.

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Table 1: Requirements and Project Criteria



PRIVATE TUTORS IN PUBLIC SCHOOLS

EFFECTIVE: 22 OCTOBER 2008

VERSION: 1.8 FINAL

Last update date: 11 March 2025

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5/18/2023**5 Private Tutors in Public Schools**

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Policy statement

Principals are authorised to organise or manage private tutors to deliver educational programs to meet the needs of a student.

Background

The Department of Education (the Department) provides an appropriate educational program for all students within the available allocated resources.

The principal and teachers are responsible for the educational programs of students and it is mandated that these programs reflect the principles and outcomes of the *Western Australian Curriculum and Assessment Outline* and the *WACE Syllabus*.

Achievement of students is the province of teachers employed under s235 (1) (b) of the *School Education Act 1999* (Act). Schools must not abrogate this responsibility through the use of private tutors.

It is recognised, however, that schools do not always have the necessary resources to present educational programs to meet the full range of needs of all students.

In such cases, the principal may consider requests from parents to grant approval for students to attend private tutoring programs during school hours.

Such programs may be delivered either at the school or at a place other than the school. Section 24 (1) of the *School Education Act 1999* provides authority for an arrangement to be entered into by which a student is able to attend at a place, other than the school, to participate in activities that are recognised as part of the school's educational program. Such an arrangement may take the form of a period of time each week, or a block of time during the school year.

Principals may be approached to give permission for a private tutor to use the school premises for out of school hours tutoring. Although this is not a school endorsed activity, procedures have been written to outline the steps needed to allow the use of the school facilities. After school tuition off the school premises and not organised by the school is not a school activity and is not covered by this policy.

scope

This policy applies to:

- all public school principals who manage or organise private tutors to run an approved education program for students; and
- all principals of public schools where a private tutor requests to use the school facilities for after school hour tutoring.

Procedures

Private Tutors organised or Managed by Schools

Private tutoring programs attended by students during school hours must:

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- be confined to activities that enrich the content of the school's educational program;
- address the particular educational needs of students in areas not provided by the school; and
- not replace regular school educational programs.

Principals must:

- be satisfied that the private tutor is appropriately qualified, has a Nationally Coordinated Criminal History Check and a Working with Children Check;
- satisfy themselves that the private tutor is suitable to care for students when deciding whether to entrust the care of students to a private tutor;
- provide private tutors with clear instructions as to the level of care required for the student;
- be satisfied that the educational program to be presented is consistent with the educational program being offered by the school;
- prepare and retain a written statement that outlines the rationale for the decision to approve a private tutor to present an educational program;
- in the event that a private tutor presents programs on school premises, they are required to present documentation indicating that they have public liability insurance of no less than \$20 million with an unlimited aggregate in public liability;
- as per subsections 24 (2) and (3) of the *School Education Act 1999*, enter into a written agreement with the student's parent/responsible person (Appendix A); and
- when the private tutoring program occurs away from the school site, treat the activity as an excursion and comply with the provisions of the *Excursions in Public Schools* procedures in the Duty of Care for Public School Students policy and procedures.

Principals and managers must confirm that all Department employees, volunteers, visitors and external providers in child-related work have applied for or hold a valid Working with Children Check in accordance with the Department's *Criminal History Screening for Department of Education Sites policy and procedures*.

Guidelines

The written agreement can be terminated at any time by the principal if it is not in the student's best interest or if it is preventing the teacher from performing his/her mandated role and the student from achieving the outcomes of the classroom program.

If the private tutoring program occurs away from the school site, parents/responsible persons should organise a student's travel arrangements.

use of school facilities BY Private Tutors

When deciding whether private tutors are permitted to use school facilities, decisions must be made in accordance with the *Community Use of Public School Facilities policy*.

Guidelines

Private tutors may be permitted to use the school facilities, outside of hours of instruction, at the discretion of the principal and the school council.

It is expected that a charge would be levied on the private tutors for the use of school facilities.

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Relevant Legislation or Authority

~~Curriculum Council Act 1997~~

~~School Education Act 1999~~

~~School Education Regulations 2000~~

~~Working with Children (Criminal Record Checking) Act 2004~~

~~Working with Children (Criminal Record Checking) Regulations 2005~~

Related ~~DEPARTMENT OF EDUCATION~~ policies

~~Community Use of School Facilities and Resources in Public Schools~~

~~Configuration of the School Day in Public Schools~~

~~Curriculum, Assessment and Reporting in Public Schools~~

~~Duty of Care for Public School Students.~~

~~Excursions in Public Schools~~

~~Visitors and Intruders on Public School Premises~~

~~Working With Children Checks in Department of Education Sites~~

Definitions

educational program

An organised set of learning activities designed to enable a student to develop knowledge, understanding, skills and attitudes relevant to the student's individual needs.

Parent and responsible person

In this policy the term 'parent' will be used for brevity, and also includes 'responsible person' as defined below.

In the ~~School Education Act 1999~~, Part 1, Section 4, Definitions, parent in relation to a child, means a person who at law has responsibility:

- a) — for the long term care, welfare and development of the child; or
- b) — for the day to day care, welfare and development of the child

except in Sections 9 (2), 10 (b), 25, 27, 38 (1) and Division 2 Part 2 where it only has the meaning given by paragraph (b).

In Section 25 of the ~~School Education Act 1999~~ the 'responsible person', in relation to a student means:

- g) — a parent of the student;
- h) — in the case of a student who has turned 18 or is a prescribed child, the student; or
- i) — a person whose details have been provided under Section 16(1) (b) (ii) (II) which states any adult person, not being a parent, who is responsible for the child.

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private tutors

~~Persons not employed by the Department and paid directly by parents/responsible persons.~~

contact information

~~Policy manager: Manager, Project Support~~

~~Planning Policy contact officer/s: Project Support~~

~~T: (08) 9402 6220~~

~~E: projectsupport.admin@education.wa.edu.au~~

~~In the first instance, general enquiries about private tutors should be directed to the relevant education regional office.~~

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Appendix A PRIVATE TUTOR AGREEMENT

OFFICE USE ONLY	
Date received: _____	☐
Police clearance sighted	☐

SCHOOL: _____

(INSERT NAMES OF THE PARENTS/RESPONSIBLE PERSONS) ("the Parents")

—and—

(INSERT PRINCIPAL'S NAME) ("the Principal")

IN RELATION TO:

(INSERT STUDENT'S NAME) ("the Student")

Pursuant to section 24 of the *School Education Act 1999*, we agree that the Student shall be permitted to attend for private tutoring during school hours:

with: _____ (insert private tutors name)

at: _____ (insert place at which private tutoring will take place)

on: _____ (insert days and times on which the private tutoring will take place)

We agree to this private tutoring on the following basis:

- 1.—The private tutoring is consistent with the school's philosophy.
- 2.—The private tutoring will supplement the educational program of the student at school and contribute to the achievement of desirable outcomes for the student.
- 3.—The school does not currently have the resources to deliver this program at school.
- 4.—The principal has applied the *Duty of Care for Students in Public Schools* policy and is satisfied as to the suitability of the private tutor to supervise the student.
- 5.—The parents' inform the principal about the student's progress.
- 6.—The parents' accept that they are responsible for the travel arrangements for the student to and from the private tutor.
- 7.—The principal may vary or terminate this agreement at any time.

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Appendix B HISTORY OF CHANGES

Effective date	AB 2011 ProjectsLast update date	SB 6 ProjectsPolicy version no	
Location22 October 2008	Urbanized area or urban cluster (now "urban areas")29 November 2013	Urbanized area or urban cluster (now "urban areas")1.1	D13/0

22 October 2008	23 March 2015	1.2	D15/0104445	Contact information updated to reflect change in position from Director, Office of the Director General to Executive Director, Organisational Governance: D15/0085666
22 October 2008	29 June 2015	1.3	D15/0250174	Updated contact details D15/0198137
22 October 2008	20 September 2017	1.4	D17/0402848	Update contact details D17/0402847

Zoning and Adjoining Uses22 October 2008	Commercial zones (office, retail or parking); Not on/adjacent to sites with more than 1/3 industrial use; not in proximity a freeway or oil/gas refinery3 October 2018	1.5	D18/0
Project Type22 October 2008	Multi-family residential or mixed-use with at least two-thirds residential or transitional or supportive housing26 February 2020	Multi-family residential or mixed-use with minimum 50% residential1.6	D20/0

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22 October 2008	15 June 2021	1.7	D21/0326795	Minor changes to out of date information; update references, links & contacts D21/0326796
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Labor Requirements 22 October 2008	Prevailing wage required 11 March 2025	1.8	D25/02
Exempting Parcels	May exempt parcels with written findings and by designating “substitute” parcels	May exempt parcels with written finding and concurrently reallocate residential density	
Density Bonus	Applies	Applies	
Affordable Housing	Required (details in Overview document)	Only local standards*	
CEQA	Exempt	Not exempt*	
Approval Process	Streamlined, ministerial process (see below)	No new process*	
Coastal Zone	May be used in Coastal Zone	May be used in Coastal Zone & Coastal Act applies*	

*Unless applicant invokes SB 35

See additional criteria and details in Overview of AB 2011 and SB 6.

AB 2011 Review Timelines

For projects with 150 units or less, applicants must be informed of inconsistencies with all qualifying criteria within 60 days, and projects must be processed and reviewed for all applicable AB 2011 and local objective standards within 90 days. For projects with more than 150 units, applicants must be informed of inconsistencies with all qualifying criteria within 90 days, and projects must be processed and reviewed for all applicable AB 2011

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